

2. The Enlarged Board went on to hold that such patenting is also not excluded where a dosage regime is the only feature claimed which is not comprised in the state of the art. Given the answer to the first question, and, since Art. 54(5) EPC may be used in cases of the treatment of the same illness, the "specific use" in the sense of that provision may reside in something other than the treatment of a different illness, the Enlarged Board held that there is no reason to treat a feature consisting in a new dosage regime of a known medicament differently from the one given to any other specific use acknowledged in the case law. However, it stressed that the whole body of jurisprudence relating to the assessment of novelty and inventive step also applies. The jurisprudence on this continues to apply (see T 290/86; OJ 1992, 414; T 1020/03, OJ 2007, 204; T 836/01; T 1074/06).

In T 1020/03 (OJ 2007, 204) a pure dosage regimen was for the first time recognised as not excluded from patentability. The claims were directed to the use of insulin-like growth factor-I in the preparation of a medicament for administering to a mammal in a specific discontinuous administration pattern. In the headnote, the board stated that any use to which Art. 52(4) EPC 1973, first sentence, applies in circumstances where the composition has already been suggested for some therapeutic use, allows a second medical use claim to the preparation of the composition for that second medical use, irrespective of in what detail that use was specified, subject to the use being novel and inventive. For the purposes of novelty also under Art. 54(5) EPC this depends on whether use for therapy is novel, irrespective of the detail with which the therapy is stated in the claim.

f) New therapy with a different mode of administration

In T 51/93 the only difference between the invention as claimed and the disclosure of D(4) was that the claim was directed to an intended method of **subcutaneous administration**. The board stated that a different mode of administration for a pharmaceutical could render a medical use claim drafted according to decision G 5/83 novel. Patentability should be treated as depending only on whether this modification was in fact novel and inventive. Thus, it was possible to acknowledge novelty over D(4) (see T 143/94, OJ 1996, 430).

g) Interpretation of "substance or composition"

In T 2003/08 of 31 October 2012 the board allowed a claim directed to a new use of a column for an extracorporeal treatment. The appellant (opponent) argued, relying on decisions T 227/91 (OJ 1994, 491), T 775/97 and T 138/02, in which the boards defined the term "medicament", that claim 1 did not fulfil one prerequisite to qualify as a second medical use claim, namely that a "medicament" was used in the treatment. Indeed the means used in the treatment were a "column", which was not a "medicament", but a "device". In the board's view, it emerged from the whole reasoning of decision G 5/83 (i) that the Enlarged Board intended to allow the special second medical use-form of protection only for those uses in the medical domain which concerned a "substance" or "composition", (ii) that it was the "substance" or "composition" which achieved the medical effect and (iii) that the terms "substance" or "composition" referred at least to products which were chemical entities or compositions of chemical entities. In the case at issue the medical effect on which the treatment according to claim 1 was based was the removal of

immunoglobulin from the plasma of patients suffering from dilated cardiomyopathy. This effect was achieved by the "specific ligand for human immunoglobulin", which was undisputedly a chemical entity. The "column" only served as a carrier for the ligand and was not instrumental in achieving the therapeutic effect. Accordingly, the board held that the means used for the treatment in accordance with claim 1 was to be considered as a "substance" or "composition" within the meaning of decision G 5/83.

In T 1758/15 the patent related to a biocompatible, biodegradable, injectable filler material (e.g. collagen or hyaluronic acid) for use in a specific method. Said use comprised the injection of the filler material into a space between a first tissue of the body and a second tissue, the first tissue being subsequently treated by radiation, whereby the filler within the space reduced the exposure of the second tissue to radiation. The filler "human collagen" was known in the art. In the interpretation of the term "substance or composition" the board referred to G 5/83 (OJ 1985, 64) and T 2003/08 which interpreted the term "substance or composition" as being "the active agent or ingredient" of the particular specific medical use. Accordingly, the following must be established: (a) the means by which the therapeutic effect is achieved and (b) whether that which achieves the therapeutic effect is a chemical entity or composition of chemical entities. In the present case, the effect of the use of the filler material was the reduction of radiation-treatment-induced side effects on sensitive organs. This effect was constantly ascribed to the physical displacement of the sensitive tissue, i.e. to the 3D structure achieved within the body. The accumulated mass of the filler material did not, however, qualify as a chemical entity or composition of chemical entities in the sense of G 5/83. Therefore, the filler material was not a substance or composition in the sense of Art. 54(5) EPC and its specific use could not be regarded as a differentiating feature. The undisputedly commercially available collagen was thus novelty-destroying.

In T 773/10 claim 1 was directed to a new use of a dialysis membrane for the treatment of multiple myeloma. It was undisputed that document D1 disclosed all the structural features of the dialysis membrane. Art. 54(5) EPC states that Art. 54(2) EPC does not exclude the patentability of any substance or composition, comprised in the state of the art, for use in a method referred to in Art. 53(c) EPC, provided that its use for any such method is not comprised in the state of the art. The board stated that these provisions introduced a special assessment of novelty for purpose-related features. According to the appellant's submissions, the specific use of the dialysis membrane claimed in claim 1 for the treatment of multiple myeloma, i.e. a method of treatment by therapy of the human body, was not comprised in the state of the art. Therefore, it was crucial to determine whether the special assessment of novelty set out in Art. 54(5) EPC might apply to such a membrane and whether the claimed membrane should be considered a "substance or composition" within the meaning of Art. 54(5) EPC. Referring to the "travaux préparatoires" for the EPC 2000 the board had no doubt that decision G 5/83, had focused on new uses of compounds or "substances", i.e. products of the pharmaceutical industry generally referred to as "medicaments" or "drugs". However, showing that the legislative history did not include discussions on new uses of medical products other than compounds or "substances", i.e. products of the pharmaceutical industry generally referred to as "medicaments" or "drugs", could not establish that the legislator had intended to include any such products within the meaning of "substance or composition". The board came to the conclusion that the scope

of the term "substance or composition" in Art. 54(5) EPC did not extend to all products for a specific use in a method referred to in Art. 53(c) EPC. The board referred to T. 2003/08 (see above), which allowed a claim directed to a new use of a column for an extracorporeal treatment. However, in that decision it was not the column as such which had been regarded as the "substance or composition" the new use of which could confer novelty according to Art. 54(5) EPC. Rather, the column contained a ligand constituting the "active" ingredient responsible for the "therapeutic effect". In the board's view, the case before it was different. The claimed dialysis membrane did not contain any further substance or composition which might constitute an "active" ingredient within the meaning of decision T. 2003/08. It followed that for the claimed dialysis membrane the exceptional novelty assessment as set forth in Art. 54(5) EPC did not apply. The application was refused.

In T. 2369/10 the independent claim was formulated as a use-related product claim, in particular for a device for use in a method of treatment of the human or animal body by therapy. The main issue to be resolved was whether a second (or further) medical use could confer novelty on a known device. The board held that, having regard to the wording of Art. 54(4) and (5) EPC, the ordinary meaning of those provisions could not be extended so as to include something which was not explicitly provided for. It consequently considered that there was no basis on which to contemplate that novelty might be conferred on products other than substances and compositions by virtue of the provisions of Art. 54(4) and (5) EPC.

In T. 264/17 the board found that the claimed lubricant for replacing synovial fluid was a substance or composition within the meaning of Art. 54(4) and (5) EPC. The therapeutic effect of the claimed perfluorinated polyethers lay in their acting as a replacement for synovial fluid in diseased joints. In the board's view, this effect was achieved as a result of the claimed lubricant's material properties.

#### h) Statement of purpose of surgical use for a known instrument

In T. 227/91 (OJ 1994, 491) the board held that the purpose of a surgical use alone could not render novel the subject-matter of a claim relating to the use of the components of a known instrument for its manufacture, i.e. assembly. The claim under consideration related to the "use" of intercepting of a laser beam of substrate means and coating means in the manufacture of a laser surgical instrument (the use). The indication of the purpose, i.e. intercepting the laser beam, was a characteristic of the surgical use of the instrument and did not affect the structure or composition of the entity itself. This kind of functional reference could not normally impart novelty to an otherwise known article unless the function implied a necessary modification of the article itself. The surgical use of an instrument was not analogous to a therapeutic use, since the instrument was not consumed in the application and could be used repeatedly for the same or even for other purposes (T. 138/02, T. 1099/09).

- i) Discovery of a previously unknown property of a compound underlying the known effect

In T 254/93 (OJ 1998, 285) an application relating to the use of a retinoid compound in association with the use of corticosteroids in the prevention of skin atrophy was refused by the examining division. The board noted that it was a basic consideration in G 2/88 (OJ 1990, 93) that the recognition or discovery of a previously unknown property of a compound, such property providing a new technical effect, could involve a valuable and inventive contribution to the art. The board stated that it had no difficulty in accepting that the prevention of skin atrophy had to be regarded as a pharmaceutical feature and, following the conclusions of the Enlarged Board of Appeal, that the effect underlying this feature was not made available to the public in written form by any of the cited literature. Nevertheless, the question arose whether, in the case at issue, this effect was a technical effect within the meaning of decisions G 2/88 and G 6/88 (OJ 1990, 114), which was necessary to establish novelty, under Art. 54(1) EPC 1973, of the claimed subject-matter over the prior art. Although it concerned a specific aspect of the known use, the use specified in claim 1 (prevention of skin atrophy) was not actually different from the known use (treatment of dermatoses). The board observed that when a second medical indication was claimed in relation to the use of a constituent in the preparation of a known composition and the final effect was apparent in **using the known composition for the known purpose**, a technical problem could be seen neither in the obtaining of the final effect nor in the preparation of the composition. The only remaining question could be the explanation of the phenomenon underlying the treatment according to the known process. However, the **mere explanation of an effect** obtained when using a compound in a known composition, even if the explanation related to a pharmaceutical effect which was not known to be due to that compound in the known composition, could not confer novelty on a known process if the skilled person was already aware of the occurrence of the desired effect when applying the known process (see also T 669/01, T 605/09, improvement of activity in a pet is not a new technical effect in terms of G 2/88; T 433/11).

Similarly, in T 486/01 the physiological effects highlighted by the patent proprietor were only regarded as additional items of knowledge about a further mechanism of action underlying the known therapeutic application.

In T 385/07 claim 1 was drafted in the form of a second/further medical use of aplidine for making a medicament for the treatment of a mammal affected by pancreatic cancer. The relevant issue was whether or not this use related to a novel medical use within the meaning of decision G 5/83 (OJ 1985, 64). The board found that, following decision T 158/96, the information in a citation that a medicament was undergoing a clinical phase evaluation for a specific therapeutic application was not prejudicial to the novelty of a claim directed to the same therapeutic application of the same medicament if the content of said citation did not allow any conclusion to be drawn with regard to the actual existence of a therapeutic effect or any pharmacological effect which directly and unambiguously underlay the claimed therapeutic application. It was true that the present application related to in vivo results in mice, not humans. However, it was an accepted principle of the case law that, for the purpose of patent protection of a medical application of a substance, a pharmacological effect or any other effect such as an effect observed on animal models

was considered to provide sufficient evidence of a therapeutic application if, for the skilled person, this observed effect directly and unambiguously reflected such a therapeutic application (see e.g. T 241/95, OJ 2001, 103). Applying this principle, the board accepted in the case at issue that, in the absence of any data on human patients, the in vivo experiment was sufficiently predictive of the in vivo anti-tumour activity in humans.

j) Whether there is a therapeutic method

In T 454/08 the board confirmed that if a claim formulated as a Swiss-type claim was not directed to the use of any therapeutic method or was de facto directed to a non-therapeutic use, the feature defining the use was purely illustrative and could not be used to establish novelty over the prior art. In effect, this specific novelty approach applied only to claims directed to the use of a substance or composition intended for use in a method referred to in Art. 52(4) EPC 1973 (now Art. 53(c) EPC). Claim 1 of the main request was based on the model proposed by G 5/83, namely the application of a substance to produce a composition for a particular use. However, nothing in the wording of claim 1 implied use in any of the therapeutic methods within the meaning of Art. 53(c) EPC. The specific novelty approach created by G 5/83 thus did not apply to claim 1 of the main request, the subject-matter of which amounted to a process claim. The step of administering the tablet had to be seen as an illustrative feature of the tablet and not as a limiting feature for a specific mode of administration.

In T 1278/12 the board had to decide whether the main claim constituted a second medical use claim (Swiss-type claim). The appellant argued that the reference to "an infant delivered via caesarean section" implicitly indicated a therapeutic effect. The board stated that an enteral administration to an infant delivered via caesarean only specified the mode of delivery to the patient, but did not relate to any therapeutic effect obtained thereby. The appellant argued that, according to T 1020/03, the therapeutic effect did not need to be specified in a claim for it to qualify as a further medical use claim. The board did not share the appellant's view and observed that the board in T 1020/03 had explicitly stated that the further medical indication had to be specified in the claim with some degree of specificity. Since claim 1 of the main request did not specify any therapeutic effect at all, it represented a non-medical use claim. Therefore the wording "for enteral administration to an infant delivered via caesarean section" limited claim 1 only in so far as the composition had to be suitable for the enteral administration to caesarean section infants. Since this suitability was given in some documents, these were novelty-destroying for the subject-matter of claim 1.

In T 182/16 the composition was an "infant formula or growing up milk for toddlers" enriched with sn-2 palmitic acid for improving body composition with regard to lean body mass and muscle mass. The board held that irrespective of the fact that the wording of claim 1 did not actually restrict the group of subjects to whom the composition was to be administered to infants and toddlers, and in line with decision T 1278/12, simply referring to infants does not imply a therapeutic use, since feeding an infant is not a therapeutic step within the meaning of Art. 53(c) EPC.